

Dr. Deepika Bhaskar
Registrar

Date: 16.05.2025

IIITD/RO/2025/-392

OFFICE ORDER:-18/2025

INSTITUTE-LEVEL COMMITTEE FOR AGREEMENT REVIEW

In revision of Office Order *IIITD/IRD-Estb.04/2023/197* dated 16.11.2023, the following committee is proposed as the Institute-Level Committee for Agreement Review:

- | | |
|--------------------------------|---------------------|
| 1. ADIRD | : Chairperson |
| 2. Registrar | : Member |
| 3. Dr. Jaspreet Dhanjal | : Member |
| 4. Dr. Abhijit Mitra | : Member |
| 5. Mr. Kapil Dev Garg | : Member Secretary |
| 6. Ms. Lakshika Ahuja | : For Legal vetting |

Approvals:

1. **ADIRD**- for all other agreements, including but not limited to Technology Transfer, NDAs, Startup NoCs, Consultancy Agreements; other standard MoUs can be approved by Registrar on request by ADIRD for timely resolution.
2. **DOAA**- for Academic Agreements
3. **DIRD**- for Research-related Project Agreements
4. **DCRE**- for startup and corporate agreements.

Note: ADIRD may appoint additional personnel to assist the committee for smoother operations. Such personnel will serve in a non-member capacity. The tenure of the Committee will be two years, effective from the date of issuance of this notification.

Terms of Reference for the Committee:

1. To examine, vet, and recommend any agreement to be signed by the Institute.
2. To assign a Champion/faculty member responsible for the agreement.
3. To conduct meetings, moderate discussions, and provide directions and recommendations for agreements.
4. To conduct a half-yearly review and assessment of all existing agreements, evaluating their health, relevance, deliverables, and continuation.
5. To consolidate the outcomes of agreements on a yearly basis and discuss future directions with the Committee.
6. To propose model agreements, formulate guidelines, conduct trainings, and provide guidance.
7. To provide timely advice and updates to each Champion (faculty/student) regarding the progress of agreements.

8. To approve any new IP to be filed by faculty or students and provide the go-ahead for patent filing by faculty.
9. To conduct a half-yearly review and assessment of all existing IPs for their relevance and deliverables.
10. To propose future guidelines for agreements, IP filings, and technology transfer and provide support to faculty and students regarding the same.
11. To empanel patent attorneys and review their output on a yearly basis.
12. In the case of disputes after an agreement has been signed, the Committee may be asked to make recommendations on a case-by-case basis.
13. The records of original signed agreements will be kept and maintained by the Member Secretary and legal office.
14. Faculty members can seek the Committee's advice on consultancy agreements.
15. **Conflict of Interest:** To ensure transparency in the agreement review and approval process, the following conflict of interest conditions shall apply to the Institute-Level Committee for Agreement Review:
 - a) **Committee Member as Agreement Champion:** If any member of the Committee is the *champion* of the agreement under review, they shall recuse themselves from all stages of the review process related to that agreement.
 - b) **DOAA / DIRD / DCRE as Champion or Project Instructor:** If the *DOAA, DIRD, or DCRE* is the champion or Project Instructor for the agreement, the approval shall be obtained from the *ADIRD* or a designated official appointed by the *ADIRD*, provided they are not directly involved in the agreement.
 - c) **Chairperson (ADIRD) as Agreement Champion:** In the event that the *Chairperson (ADIRD)* is the champion of the agreement, they shall not participate in the review process. In such cases, the final approval shall be obtained from the *DIRD*.

The Standard Operating Procedure (SOP) for agreement assessment is placed herewith as **Annexure A**.


16.05.2025
Dr. Deepika Bhaskar
(Registrar)

Copy for kind information/necessary action (via email):

1. All Committee Members
2. All Faculty Members & Office Staff
3. Office Order File
4. Director's Office
5. Web Admin

Annexure A

STANDARD OPERATING PROCEDURE (SOP) FOR AGREEMENT REVIEW COMMITTEE OPERATIONS

Scope of the SOP: This Standard Operating Procedure (SOP) applies to the review and execution of all agreements that require the Institute's signature.

Step 1: Initiation

- The *Champion* (i.e., the faculty member or student responsible for the agreement) initiates the process by completing the designated Google Form and submitting a draft of the agreement.
- If a draft is not available, the Institute will provide its standard template for use.

Step 2: Initial Review

- The *Convener/Nominee* scrutinizes the agreement for an initial review, checking for gaps, overheads, financial elements, etc.
- If necessary, the Convener will coordinate with the Champion to complete the agreement.
- A complete agreement must include:
 - The address of the other party
 - The domain of work of the other party
 - The name of the signing authority from both parties
- Once completed, the agreement will be moved to a shared folder for Legal review.

Step 3: Legal Vetting

- The *Legal Consultant* reviews the agreement to ensure compliance with applicable laws and regulations, making necessary revisions as required.
- The legal vetting process will involve a critical review and identification of potentially unfavorable or unilateral clauses, including but not limited to the following areas:
 - Indemnity provisions
 - Inequitable intellectual property (IP) sharing arrangements
 - Jurisdiction or arbitration-related matters
 - Financial obligations or space utilization terms
 - Non-compete clauses

Any issues identified will be flagged for further discussion and negotiation to ensure fair and balanced contractual terms.

Step 4: Review by Agreement Review Committee

- The legally vetted agreement is forwarded to the *Agreement Review Committee* for further review by the IRD Office.
- The Committee is expected to provide feedback within three (3) working days.
- All comments will be recorded and shared via Google Drive.
- If further clarification is needed, the *ADIRD* or their nominee will facilitate a discussion with the Champion.

Step 5: Legal Consultation

- The *Legal Consultant* prepares a redlined version of the agreement, incorporating the Committee's feedback.
- The revised version is then shared with the Champion for review and approval.

Step 6: Champion Review

- The *Champion* shares the revised agreement with the external party for their review and approval. Alternatively, the Champion may delegate authority to accept the suggested revisions.
- Upon receiving approval from the other party (or confirmation from the Champion), the Legal Consultant will prepare the final, clean version of the agreement.

Step 7: Approvals

- The final agreement will be approved as follows:
 1. **DOAA**- for Academic Agreements
 2. **DIRD**- for Research-related Project Agreements
 3. **DCRE**- for startup and corporate agreements.
 4. **ADIRD**- for all other agreements, including but not limited to Technology Transfer, NDAs, Startup NoCs, Consultancy Agreements; other standard MoUs can be approved by Registrar on request by ADIRD for timely resolution.
- ADIRD may waive the requirement for ADIRD-level approval and delegate it to the Registrar for straightforward contracts, such as NDAs and umbrella MOUs. Such a decision can be communicated by ADIRD at any phase of the agreement reviewing lifecycle.
- **Conflict of Interest:** To ensure transparency in the agreement review and approval process, the following conflict of interest conditions shall apply to the Institute-Level Committee for Agreement Review:
 - a) **Committee Member as Agreement Champion:** If any member of the Committee is the *champion* of the agreement under review, they shall recuse themselves from all stages of the review process related to that agreement.

- b) **DOAA / DIRD / DCRE as Champion or Project Instructor:** If the *DOAA*, *DIRD*, or *DCRE* is the champion or Project Instructor for the agreement, the approval shall be obtained from the *ADIRD* or a designated official appointed by the *ADIRD*, provided they are not directly involved in the agreement.
- c) **Chairperson (ADIRD) as Agreement Champion:** In the event that the *Chairperson (ADIRD)* is the champion of the agreement, they shall not participate in the review process. In such cases, the final approval shall be obtained from the *DIRD*.

Step 8: Execution

- The *Registrar* will sign the agreement—either digitally or physically, as per the requirements (e.g., on stamp paper, if specified).
- The *Admin, IRD* will coordinate logistical arrangements, including the procurement of stamp paper and ensuring signatures from both parties. A signed copy will be maintained by both the Legal and IRD offices.

Monitoring and Reporting

- The *Legal Consultant* will prepare and share a monthly progress report detailing:
 - Agreements currently under review
 - Agreements that have been signed
 - Agreements pending action